

Environmental Law and Sustainable Development: A Focus on Bangladesh and International Law

This document explores the intersection of environmental law and sustainable development, specifically within the context of Bangladesh's domestic legal framework and relevant international legal instruments. It examines how Bangladesh's laws align with global sustainability goals, the challenges faced in implementation, and the role of international law in shaping domestic policies. The discussion highlights key legislation, principles, and case studies that illustrate the ongoing efforts to balance development needs with environmental protection.

Introduction

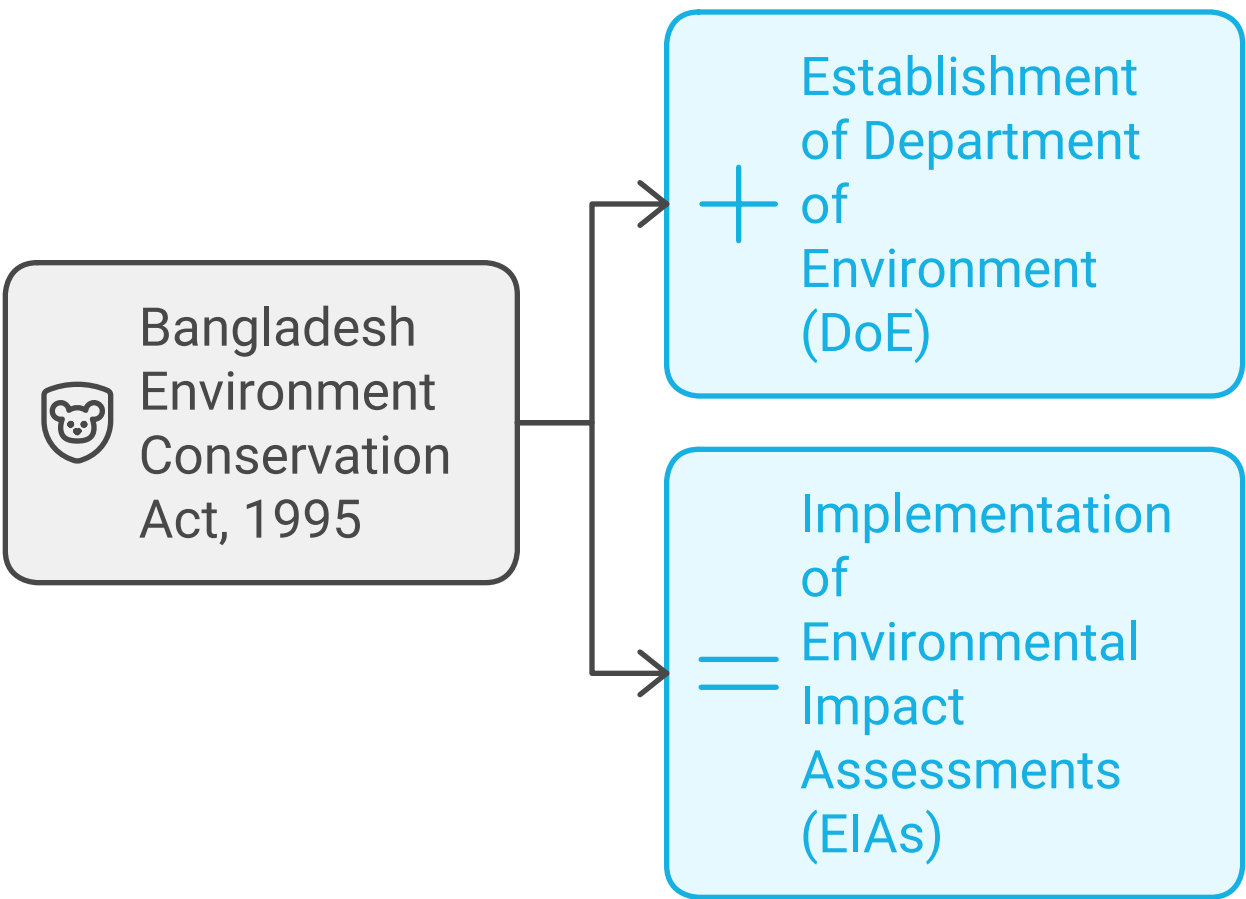
Environmental law is a critical component of sustainable development, aiming to protect natural resources while promoting economic growth. In Bangladesh, a country rich in biodiversity yet vulnerable to environmental degradation, the need for effective environmental legislation is paramount. This document provides an overview of Bangladesh's domestic environmental laws and their alignment with international legal frameworks, emphasizing the importance of sustainable development.

Domestic Environmental Law in Bangladesh

Key Legislation

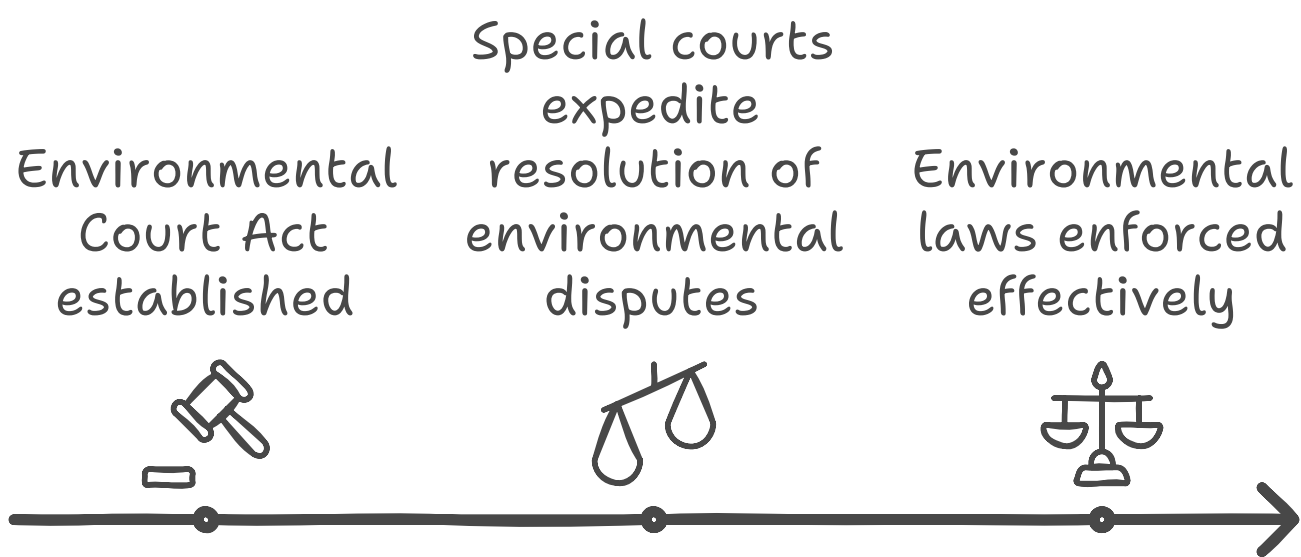
Bangladesh has established a comprehensive legal framework to address environmental issues. Some of the key pieces of legislation include:

- The Bangladesh Environment Conservation Act, 1995:** This act provides the foundation for environmental protection in Bangladesh, establishing the Department of Environment (DoE) and outlining procedures for environmental impact assessments (EIAs).



2. **The Environmental Court Act, 2010:** This act establishes special courts to expedite the resolution of environmental disputes, ensuring that environmental laws are enforced effectively.

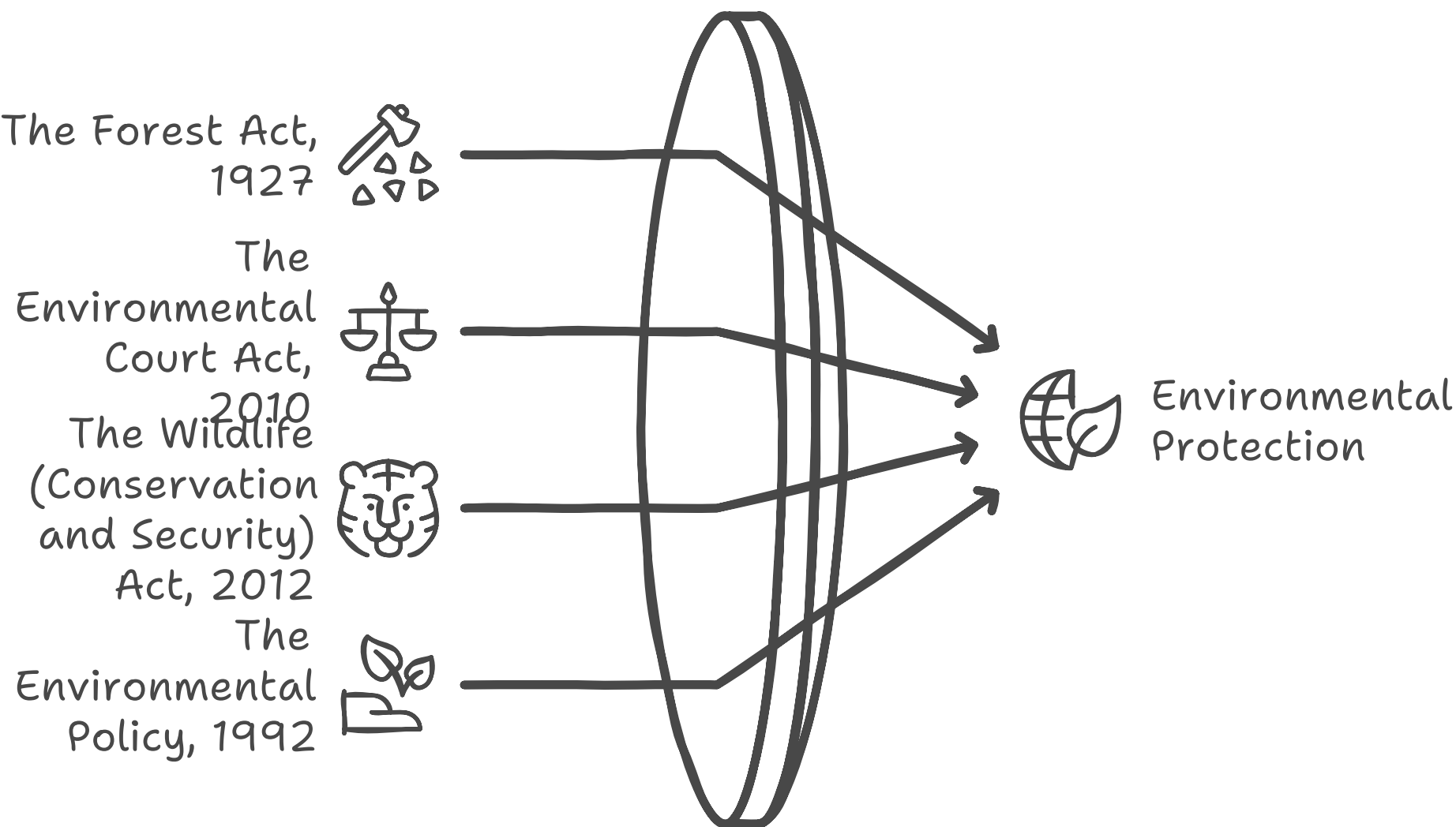
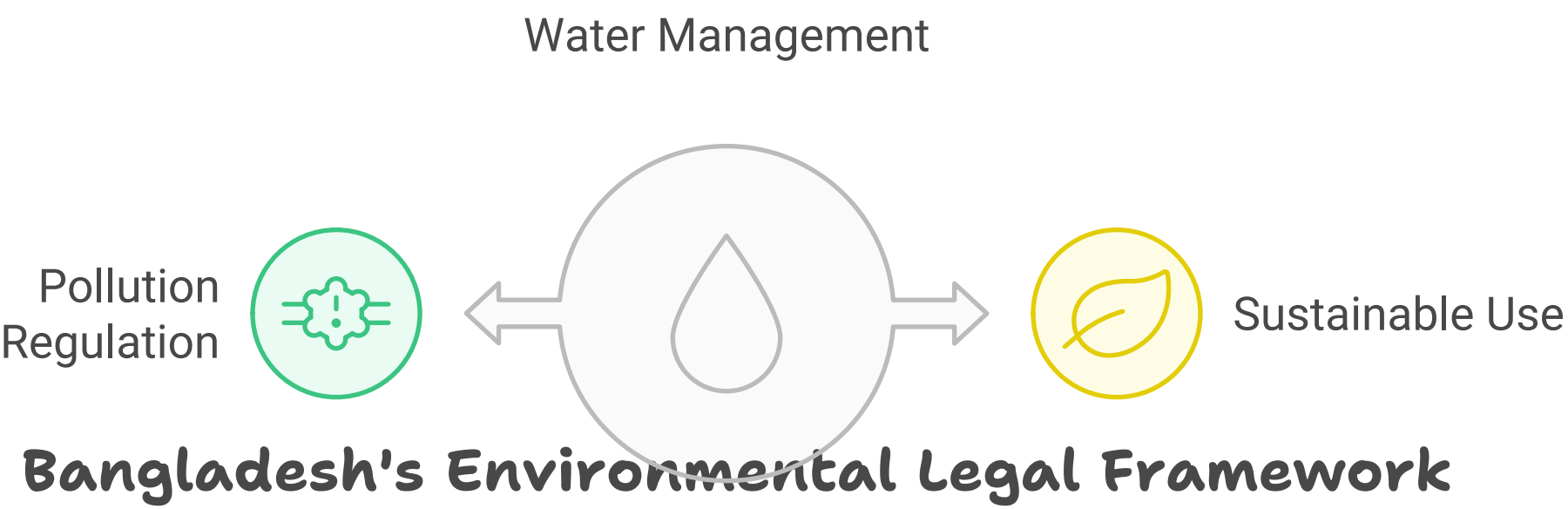
Ensuring Effective Enforcement of Environmental Laws



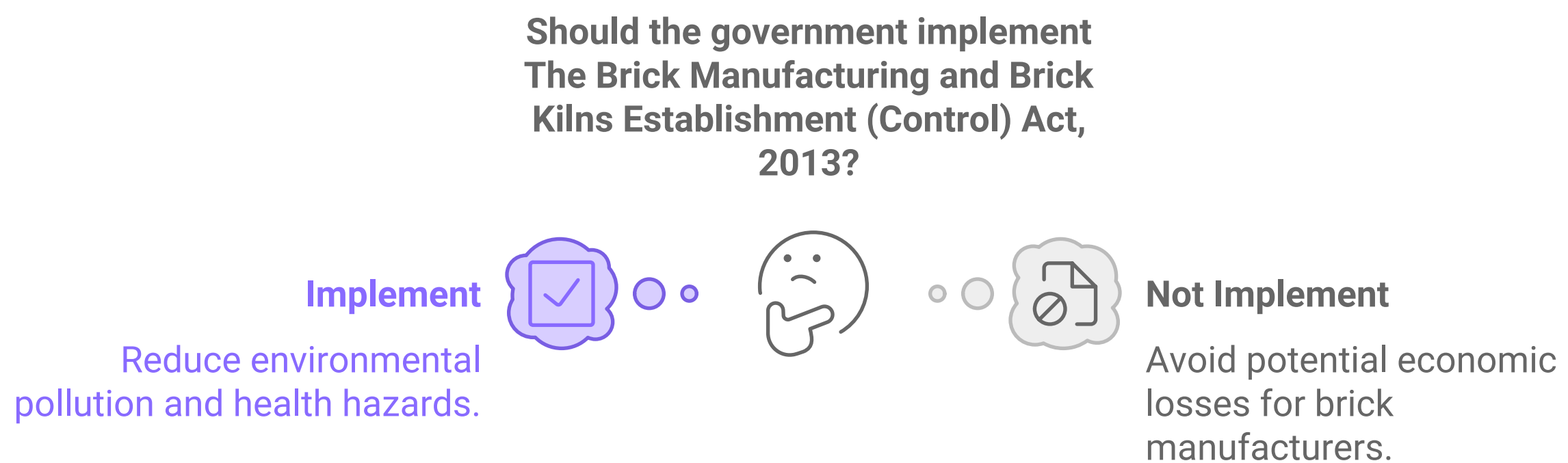
3. **The Forest Act, 1927:** Although enacted during British rule, this act remains relevant for the conservation of forests and biodiversity in Bangladesh.

4. **The Bangladesh Water Act, 2013:**

- Addresses the management, distribution, development, and conservation of water resources.
- It also regulates water pollution, ensuring sustainable use of water resources in Bangladesh



5. The Brick Manufacturing and Brick Kilns Establishment (Control) Act, 2013:

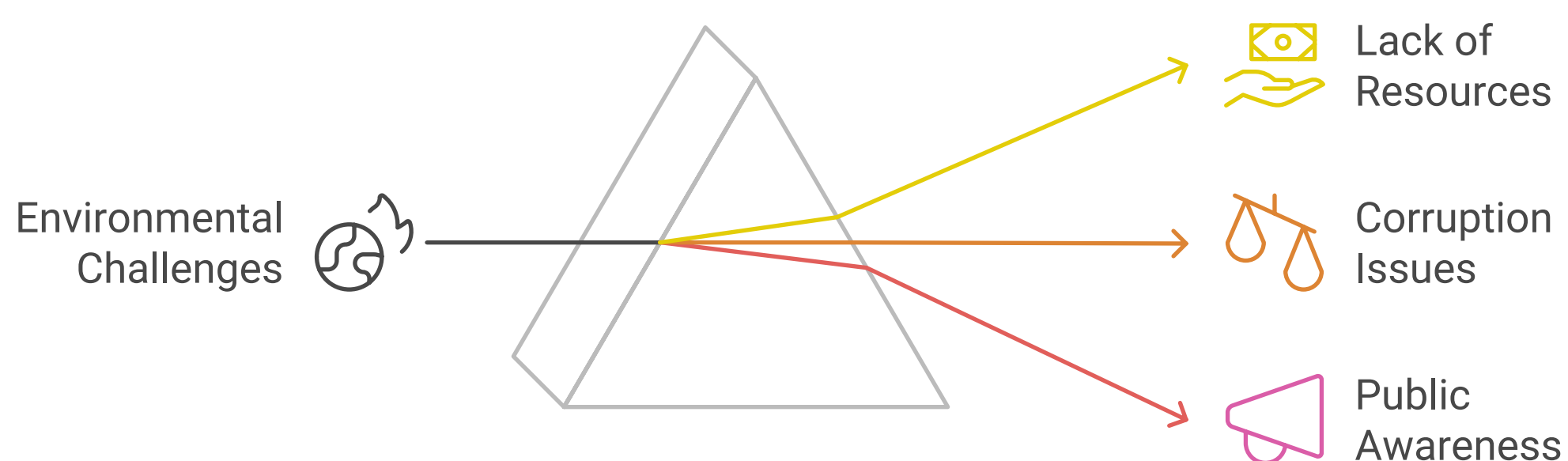


- Regulates the establishment of brick kilns, a major source of air pollution.
- Encourages environmentally friendly brick-making techniques.

Challenges in Implementation

Despite the existence of robust legislation, Bangladesh faces significant challenges in implementing environmental laws. These include:

- **Lack of Resources:** Insufficient funding and human resources hinder the effective enforcement of environmental regulations.
- **Corruption:** Corruption within regulatory bodies can lead to non-compliance and exploitation of natural resources.
- **Public Awareness:** Limited public awareness about environmental rights and responsibilities can impede community participation in conservation efforts.

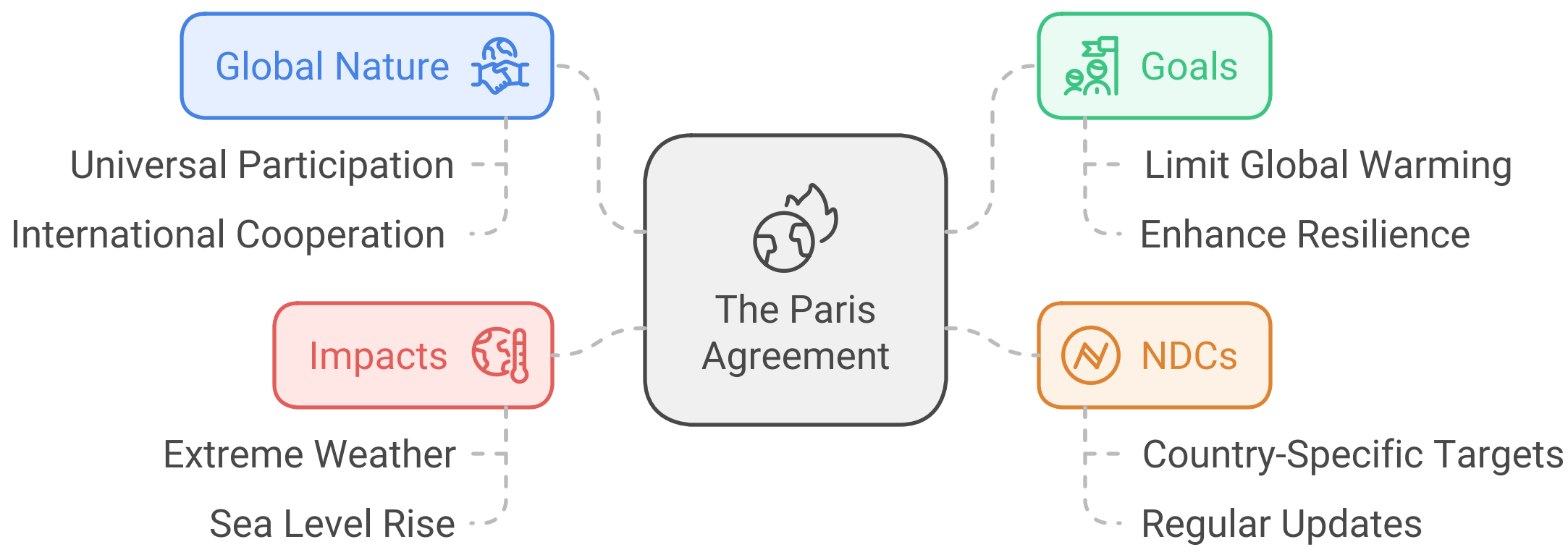


International Law and Sustainable Development

Relevant International Instruments

Bangladesh is a signatory to several international treaties and agreements that promote sustainable development and environmental protection, including:

1. **The Paris Agreement:** This global accord aims to combat climate change and its impacts, requiring countries to set and achieve nationally determined contributions [NDCs].

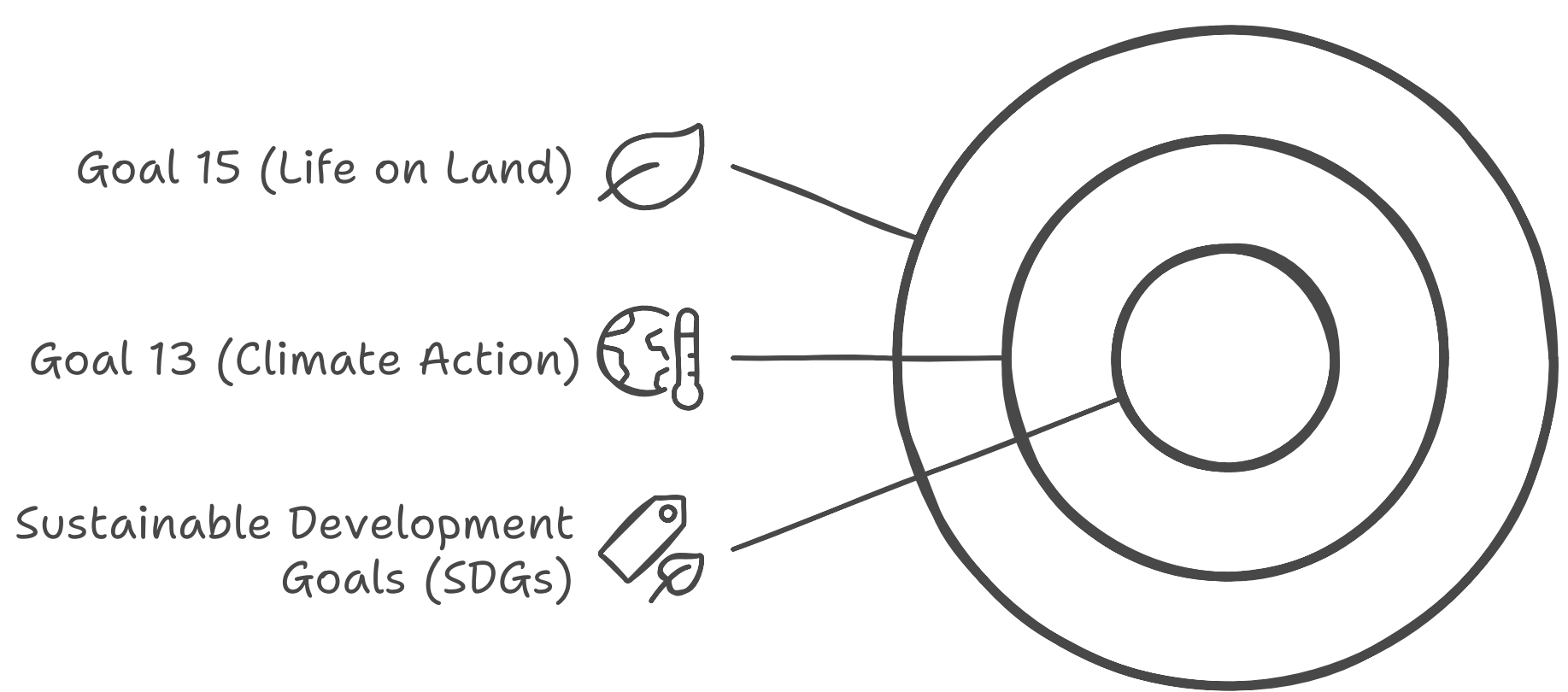


2. **The Convention on Biological Diversity (CBD):** This treaty focuses on the conservation of biological diversity, sustainable use of its components, and fair sharing of benefits arising from genetic resources.

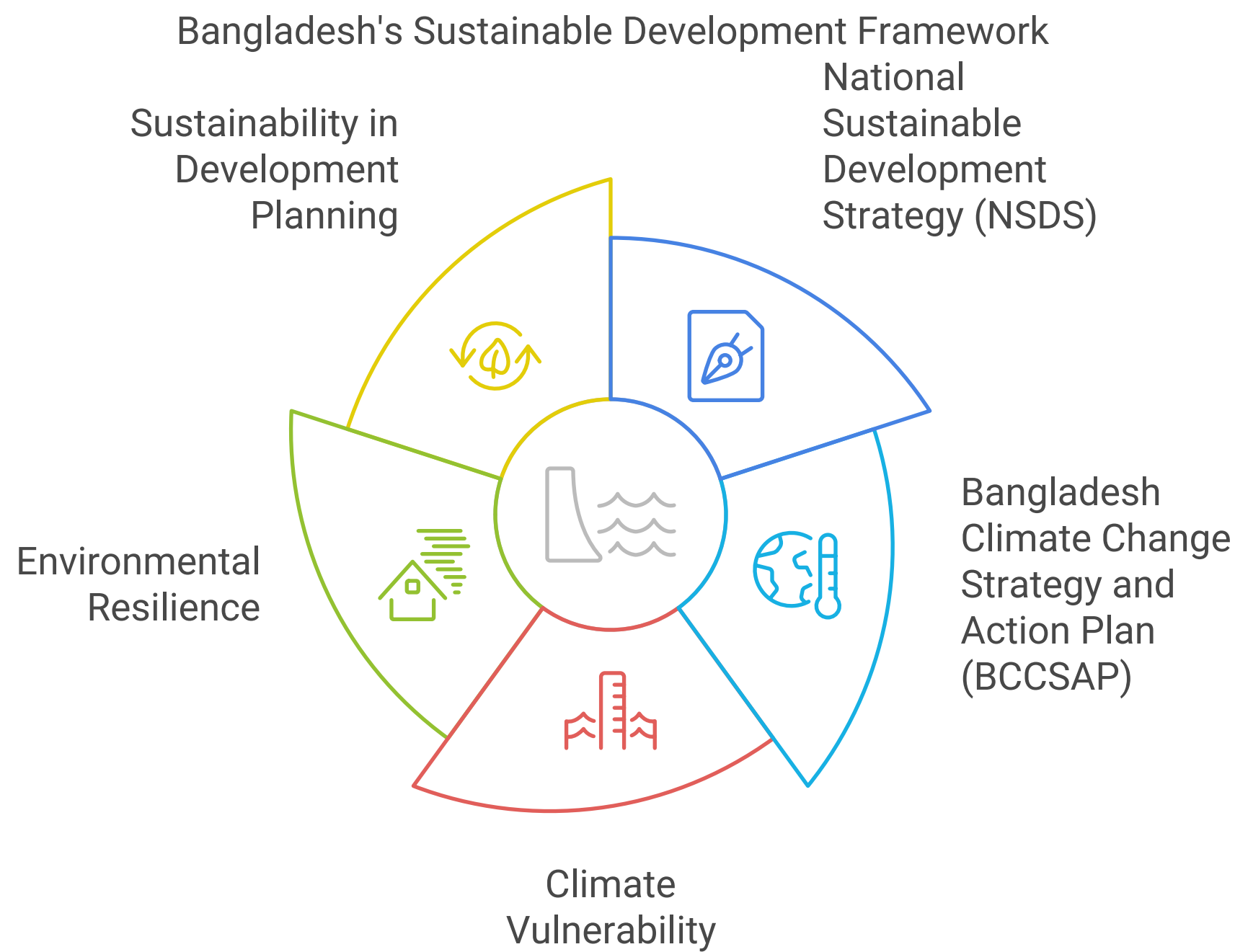


3. **The United Nations Sustainable Development Goals (SDGs):** Specifically, Goal 13 [Climate Action] and Goal 15 [Life on Land] emphasize the need for sustainable practices in development.

United Nations Sustainable Development Goals



As part of this, the country has integrated sustainable development principles into its National Sustainable Development Strategy [NSDS]. The Bangladesh Climate Change Strategy and Action Plan [BCCSAP], 2009 is a key policy document addressing climate change adaptation and mitigation. Bangladesh, being one of the most climate-vulnerable countries, has also prioritized environmental resilience and sustainability in its development planning.



4. United Nations Framework Convention on Climate Change (UNFCCC):

- Bangladesh is actively engaged in climate change negotiations under this convention.
- The country seeks financial and technical support from developed countries for climate adaptation and mitigation.

5. Ramsar Convention (1971):

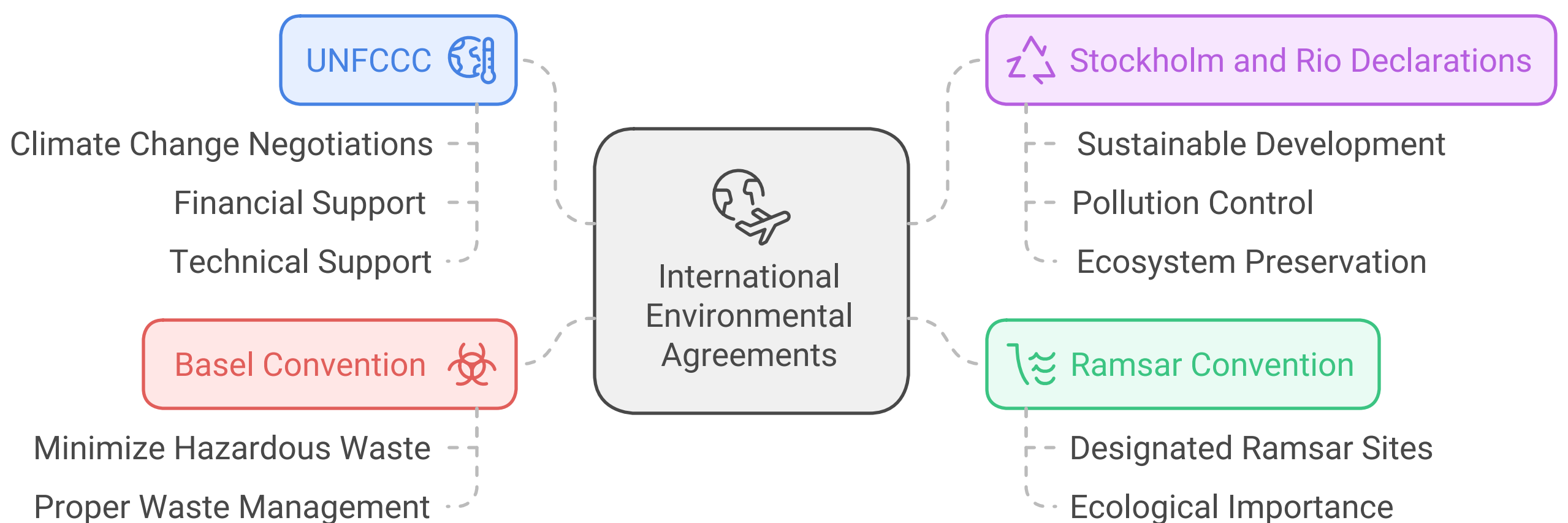
- Aimed at the conservation and sustainable use of wetlands, Bangladesh has designated several wetlands as Ramsar sites for their ecological importance.

6. Stockholm Declaration (1972) and Rio Declaration (1992):

- These major international declarations laid the foundation for global environmental governance.
- Bangladesh aligns its domestic environmental policy with the principles of these declarations, focusing on sustainable development, pollution control, and ecosystem preservation.

7. Basel Convention on the Control of Transboundary Movements of Hazardous Wastes and Their Disposal:

- Bangladesh is a signatory to this convention, which aims to minimize hazardous waste generation and ensure proper waste management.



The Role of International Law

International law plays a crucial role in shaping domestic environmental policies in Bangladesh. It provides a framework for cooperation and accountability, encouraging countries to adopt best practices in environmental governance. The integration of international principles, such as the precautionary principle and the polluter pays principle, into national legislation can enhance the effectiveness of environmental protection efforts.

1. Principle of Sustainable Development

This principle seeks to balance environmental protection with socio-economic development. It emphasizes the need for development that meets the needs of the present without compromising the ability of future generations to meet their own needs. Introduced in **Our Common Future (Brundtland Report, 1987)** and reflected in **Principle 4** of the **Rio Declaration (1992)**.

- Recognized in **Article 3(4)** of the **UN Framework Convention on Climate Change (UNFCCC, 1992)**, which integrates environmental considerations with economic development.

Application in Bangladeshi Law:

- Bangladesh Environment Conservation Act, 1995 (BECA): The Act integrates the concept of sustainable development by emphasizing environmental conservation in tandem with economic growth.
- National Sustainable Development Strategy (NSDS): Bangladesh's national policies incorporate sustainable development principles, aligning with the global Sustainable Development Goals (SDGs), particularly SDG 13 (Climate Action) and SDG 15 (Life on Land).

2. Precautionary Principle

The precautionary principle asserts that where there are threats of serious or irreversible environmental harm, the lack of full scientific certainty should not be used as a reason for postponing measures to prevent environmental degradation.

- Formally recognized in **Principle 15** of the **Rio Declaration (1992)**, which states that the absence of full scientific certainty should not delay measures to prevent environmental degradation.
- Also referenced in **Article 3(3)** of the **UNFCCC** and **Article 10(7)** of the **Cartagena Protocol on Biosafety (2000)**.

Application in Bangladeshi Law:

- Bangladesh Climate Change Strategy and Action Plan (BCCSAP): This strategy embodies the precautionary principle by focusing on anticipatory actions to mitigate climate risks, even though all scientific models cannot predict exact outcomes.
- Bangladesh Environment Conservation Act, 1995: The Act allows the government to take preventive measures when there is a risk of environmental harm, supporting the precautionary approach.

3. Polluter Pays Principle

This principle asserts that those who cause environmental damage should bear the costs of preventing, controlling, and remedying the damage.

- Enshrined in **Principle 16** of the **Rio Declaration (1992)**, the polluter should bear the costs of pollution, with due regard to the public interest and without distorting international trade.
- Supported in the **OECD Council Recommendation on the Implementation of the Polluter Pays Principle (1974)**.

Application in Bangladeshi Law:

- Bangladesh Environment Conservation Act, 1995: Section 7 of this Act mandates that any individual or organization responsible for environmental pollution is liable for the cost of mitigation or remediation. This aligns with the polluter pays principle.
- Brick Manufacturing and Brick Kilns Establishment (Control) Act, 2013: Industrial pollution laws, such as this one, place the financial burden of pollution control on the industries themselves.

4. Principle of Intergenerational Equity

This principle asserts that present generations hold the environment in trust for future generations. It demands that today's generation should act in a way that ensures the environment remains healthy and viable for future generations.

- Introduced in **Principle 3** of the **Rio Declaration (1992)**, it mandates the protection of the environment for future generations.
- Referenced implicitly in the **Paris Agreement (2015)**, where sustainable development and resilience-building strategies are tied to long-term goals (Article 4).

Application in Bangladeshi Law:

- Constitution of Bangladesh, Article 18A: The state is committed to protecting and improving the environment for the present and future generations, clearly reflecting the principle of intergenerational equity.
- National Environmental Policy (1992): This policy recognizes the importance of sustainable use of resources, ensuring that the needs of future generations are considered in present policy-making.

5. Principle of Common but Differentiated Responsibilities (CBDR)

This principle, central to many international environmental agreements, recognizes that all states have a shared responsibility to address environmental degradation, but that developed countries bear a greater burden due to their historical contribution to global environmental problems.

- Stated explicitly in **Principle 7** of the **Rio Declaration (1992)**.
- Reflected in **Article 3(1)** of the **UNFCCC** and **Article 10(1)** of the **Kyoto Protocol (1997)**, recognizing the varying capacities of countries to address environmental issues.

Application in Bangladeshi Law:

- Bangladesh's Role in International Climate Negotiations (UNFCCC and Paris Agreement): Bangladesh advocates for the CBDR principle in international forums, emphasizing the need for developed countries to provide financial and technological support to vulnerable countries like Bangladesh in dealing with climate change impacts.
- Bangladesh Climate Change Trust Fund (BCCTF): While advocating for international responsibility, Bangladesh has also established domestic financial mechanisms to support its climate change adaptation efforts, showing its commitment to shared responsibility.

6. Principle of State Sovereignty over Natural Resources

This principle affirms that states have the sovereign right to exploit their own resources, but they must not cause environmental harm to other states or areas beyond national jurisdiction.

- Rooted in **Article 2(1)** of the **United Nations Charter**, states have the sovereign right to exploit their own resources according to their environmental policies.
- **Responsibility to Prevent Transboundary Harm:**

- Codified in the **Trail Smelter Arbitration (1941)** and reinforced in **Principle 21** of the **Stockholm Declaration (1972)** and **Principle 2** of the **Rio Declaration (1992)**.

Application in Bangladeshi Law:

- Water Act, 2013: While asserting Bangladesh's sovereignty over its water resources, this Act also imposes restrictions on the unsustainable use of these resources, especially in the context of transboundary rivers (like the Ganges and Brahmaputra) to avoid harming neighboring countries.
- Forest Act, 1927 and Wildlife (Conservation and Security) Act, 2012: These laws assert state sovereignty over natural resources while simultaneously requiring sustainable use and protection.

7. Principle of Environmental Impact Assessment (EIA)

This principle requires that states conduct assessments of the potential environmental impacts of any proposed activities or projects that may have significant environmental consequences, before approving such projects.

Application in Bangladeshi Law:

- Bangladesh Environment Conservation Act, 1995: Environmental Impact Assessments (EIA) are mandatory for certain categories of industrial projects. The Act establishes a framework for the assessment of environmental impacts before large-scale projects are initiated.
- Environment Conservation Rules, 1997: These rules outline the procedures for EIAs and categorize industries based on their potential environmental impact, making it mandatory for high-impact projects to undergo thorough environmental scrutiny.

8. Principle of Public Participation and Access to Information

This principle, derived from international agreements like the Aarhus Convention, stresses the importance of public participation in environmental decision-making and the public's right to access environmental information held by public authorities.

Application in Bangladeshi Law:

- Right to Information Act, 2009: Though not specific to environmental law, this Act supports the principle by providing citizens access to information, including environmental data, from public authorities.
- National Environmental Policy [1992]: This policy emphasizes the role of public awareness and participation in environmental protection efforts. Public hearings and consultations are often required as part of the EIA process.

9. No Harm Principle

The no harm principle states that a country should ensure that activities within its jurisdiction or control do not cause environmental harm to other countries or areas beyond national jurisdiction.

Application in Bangladeshi Law:

- Transboundary Water Management: Bangladesh has been active in advocating for cooperative management of transboundary water resources, such as the Ganges and Brahmaputra rivers, in line with the no harm principle. Agreements like the Ganges Water Treaty between India and Bangladesh reflect efforts to prevent cross-border environmental harm.

Conclusion

The relationship between environmental law and sustainable development is vital for the future of Bangladesh. While the country has made significant strides in establishing a legal framework for environmental protection, challenges remain in implementation and enforcement. By aligning domestic laws with international standards and fostering public awareness, Bangladesh can work towards achieving sustainable development goals while preserving its rich natural heritage. The collaboration between national and international legal frameworks will be essential in addressing the pressing environmental issues faced by the country.